



Health Fiduciary Agreement

Landing Page Demonstration Version

Between Cadence Cove LLC, acting through its AiTHOS Division, and the undersigned Principal

DOCUMENT NUMBER	CC-AITHOS-LEGAL-DEMO-001
DOCUMENT TYPE	Health Fiduciary Agreement — Landing Page Demo / Validation Enrollment
STATUS	COUNSEL-REVIEW DEMONSTRATION DRAFT — not for execution until counsel approval
VERSION	1.0 demo draft
OWNER	Cadence Cove LLC — AiTHOS Division
COMPANION MATERIALS	Healthograph / Health Passport onboarding; Authorization; Privacy Notice; Plain-Language Acknowledgment

HEALTH FIDUCIARY AGREEMENT

Landing Page Demo / Validation Enrollment Form

This Health Fiduciary Agreement (the “Agreement”) is entered into as of _____ (the “Effective Date”) by and between Cadence Cove LLC, a _____ limited liability company acting through its AiTHOS Division (“AiTHOS”), and the individual identified on the signature page as the “Principal.” AiTHOS and the Principal may be referred to individually as a “Party” and collectively as the “Parties.”

RECITALS

WHEREAS, AiTHOS is developing a patient-principal health technology platform, including SAiRA, Health Passport, Healthograph, and related workflow tools designed to help individuals organize, understand, and share health information under their own direction;

WHEREAS, AiTHOS’s core principle is that the individual is the principal of the health-information relationship and controls what information is requested, organized, reviewed, and shared;

WHEREAS, the Principal wishes to appoint AiTHOS, solely for the limited purposes described in this Agreement, to steward certain health information and produce a Healthograph or related Health Passport output for informational, educational, and care-preparation purposes;

WHEREAS, AiTHOS wishes to accept that appointment subject to the scope limitations, privacy protections, and no-medical-advice provisions set forth below;

NOW, THEREFORE, in consideration of the mutual covenants below and other good and valuable consideration, the Parties agree as follows:

ARTICLE 1. DEFINITIONS

1.1 “Authorization.” A written or electronic authorization, request, consent, or direction by which the Principal permits AiTHOS to request, receive, organize, use, or share Health Information as described in this Agreement and any applicable exhibits.

1.2 “Health Information.” Individually identifiable health information, medical records, care summaries, visit notes, insurance or provider information, medication and allergy information, immunization information, and related data supplied by the Principal, a parent/guardian where applicable, a provider, or another source authorized by the Principal.

1.3 “Health Passport.” A lightweight digital or physical credential, card, pass, or wallet-compatible artifact that helps a Principal identify, organize, and selectively share basic health-readiness information.

1.4 “Healthograph.” A structured, source-linked health story or summary artifact generated from Health Information and related inputs. A Healthograph is intended to help the Principal prepare for care conversations, track missing information, and understand the organization of the Principal’s health information.

1.5 “SAiRA.” The AiTHOS agentic workflow interface that guides onboarding, captures structured responses, explains next steps, and coordinates permitted workflow actions. SAiRA does not replace licensed clinicians and does not provide medical advice.

1.6 “Services.” The limited informational, organizational, stewardship, and care-preparation services described in Article 3.

1.7 “Substrate Status.” The maturity designation of any AiTHOS framework, model, or analytical logic. Unless otherwise disclosed in writing, all demo and validation outputs are illustrative and not validated for clinical decision-making.

ARTICLE 2. APPOINTMENT AND NATURE OF RELATIONSHIP

2.1 Limited appointment. The Principal appoints AiTHOS to act as the Principal's limited health fiduciary solely for the Services described in this Agreement. AiTHOS accepts the appointment only within that defined scope.

2.2 Patient as principal. AiTHOS acts on behalf of, and in the informational interest of, the Principal. AiTHOS does not act on behalf of a provider, payer, employer, school, athletic department, sponsor, or product manufacturer with respect to the Services unless separately disclosed and authorized.

2.3 Scope of fiduciary duty. AiTHOS's duties are limited to stewarding Health Information with care, maintaining confidentiality, honoring the Principal's directions, disclosing material conflicts, and producing permitted informational outputs. The duties do not include clinical judgment, medical decision-making, financial management, legal representation, or any matter outside the Services.

2.4 Not a health care provider. AiTHOS is not a health care provider and does not practice medicine, nursing, pharmacy, psychology, athletic training, or any licensed health profession. The Services inform and prepare; they do not diagnose, treat, prescribe, recommend, clear, certify, or direct care.

2.5 No substitution for clinicians. The Principal will continue to consult licensed clinicians for all medical decisions and will not make, defer, or alter any medical decision solely in reliance on a Health Passport, Healthograph, SAIIRA response, or other AiTHOS output.

ARTICLE 3. SERVICES

Subject to the Principal's Authorization and any applicable eligibility, age, or program requirements, AiTHOS may provide some or all of the following Services:

- Guided onboarding through SAIIRA or a concierge-supported workflow.
- Creation of a Health Passport, Healthograph Lite, full Healthograph, or related health-readiness artifact.
- Capture of basic demographic, emergency-contact, medication, allergy, provider, immunization, sports-clearance, visit-preparation, or care-history information supplied by the Principal or an authorized parent/guardian.
- Patient-directed record requests, where applicable, under HIPAA patient access rights and applicable state law.
- Organization of information into timelines, source registries, document indexes, care-preparation questions, missing-records lists, and share packages.
- Human review or escalation where offered by AiTHOS, including concierge review or licensed-clinician escalation for items requiring clinical judgment.
- Patient-controlled sharing with designated recipients, subject to explicit permission and access controls.

ARTICLE 4. DEMO, VALIDATION, AND ILLUSTRATIVE STATUS

4.1 Demo and validation use. The Principal understands that the landing-page experience, Health Passport, Healthograph, and related workflows may be part of a demonstration, pilot, validation study, product prototype, or early-access experience.

4.2 Illustrative status. Unless AiTHOS states otherwise in a signed writing, outputs are illustrative, educational, and organizational only. They are not calibrated or validated to support clinical decisions.

4.3 No outcome warranty. AiTHOS does not warrant that the Services will improve health outcomes, reduce risk, change care decisions, improve athletic performance, secure clearance, or cause any provider to act.

4.4 Emergency situations. AiTHOS is not an emergency service. In a medical emergency, the Principal must call 911 or seek immediate care from emergency medical professionals.

ARTICLE 5. AUTHORIZATION, PRIVACY, AND DATA HANDLING

5.1 Authorization required. AiTHOS will not request records from third parties, share identifiable outputs, or use Health Information outside the Services without an applicable Authorization.

5.2 Principal direction. The Principal controls which sources are requested, which outputs are generated, and which recipients may receive shared information.

5.3 Data minimization. AiTHOS will request and process only the information reasonably needed for the Services or demonstration experience chosen by the Principal.

5.4 Confidentiality and safeguards. AiTHOS will maintain reasonable administrative, technical, and physical safeguards designed to protect Health Information. Sensitive information should be transmitted only through secure AiTHOS-supported channels, not through open SMS or unsecured email unless the Principal expressly directs otherwise after being informed of the risks.

5.5 Access by school, team, employer, sponsor, or provider. No school, team, coach, employer, sponsor, provider, or other third party receives identifiable Health Information through AiTHOS unless the Principal or, where legally required, a parent/guardian, expressly authorizes that sharing.

5.6 Revocation. The Principal may revoke any Authorization or sharing permission as described in the applicable Authorization or product workflow. Revocation stops future use or disclosure but may not reverse actions already taken in reliance on the prior Authorization.

5.7 Return and deletion. Upon termination or revocation, AiTHOS will cease further assembly and, at the Principal's election, return, export, or delete Health Information except where retention is legally required, reasonably necessary for audit/security, or limited to de-identified or aggregated information permitted under Article 6.

ARTICLE 6. AI-GUIDED WORKFLOWS AND HUMAN REVIEW

6.1 AI assistance. SAiRA and other AiTHOS tools may assist with intake, explanation, organization, summarization, workflow routing, document indexing, and preparation of draft outputs.

6.2 No autonomous clinical decision-making. AiTHOS does not permit AI tools to independently diagnose, treat, prescribe, clear an athlete, recommend a procedure, or make clinical decisions.

6.3 Review gates. Where the Services involve clinical-context outputs, record-derived summaries, or validation-cohort Healthographs, AiTHOS may require human review before release to the Principal or any authorized recipient.

6.4 Errors and limitations. The Principal understands that AI-assisted and document-processing tools may be incomplete, inaccurate, or unable to interpret certain information. The Principal is encouraged to review outputs and report errors.

ARTICLE 7. USE OF INFORMATION FOR VALIDATION AND IMPROVEMENT

7.1 De-identified and aggregated use. Subject to applicable law and the Principal's Authorization, AiTHOS may use de-identified or aggregated information to validate, improve, secure, and evaluate the platform.

7.2 No identifiable publication without consent. AiTHOS will not publish or externally present identifiable case-level information without separate, specific written consent.

7.3 Research and IRB. If a program is conducted as human-subjects research or under an institutional review board, the IRB-approved consent and protocol will control where they conflict with this Agreement.

ARTICLE 8. MINORS, PARENTS, AND STUDENT-ATHLETES

8.1 Minor users. If the Principal is under the age of majority, a parent or legal guardian may be required to authorize enrollment, data entry, record access, or sharing. AiTHOS may limit features available to minors without parent/guardian approval.

8.2 Teen-owned experience. Where permitted by law and program design, AiTHOS may allow a teen or young adult to initiate a lightweight Health Passport experience while requesting parent/guardian completion of more detailed information.

8.3 Student-athlete privacy. For athlete-focused programs, coaches, teams, schools, athletic departments, and athletic staff do not receive identifiable Health Information through AiTHOS unless the Principal authorizes a defined share. AiTHOS outputs do not determine eligibility, return-to-play, or clearance.

8.4 Sensitive categories. Information involving mental health, reproductive health, substance-use treatment, genetic information, HIV status, or other specially protected categories may require separate consent or may be excluded from demo workflows unless counsel-approved safeguards are in place.

ARTICLE 9. COMPENSATION, FEES, AND SPONSORSHIP

9.1 Demo or pilot fees. Unless a separate written schedule states otherwise, the landing-page demo or validation enrollment is offered without charge to the Principal.

9.2 No sponsor access. If a third party sponsors access to AiTHOS, such sponsorship does not entitle the sponsor to identifiable Health Information, record-level access, or the ability to direct the Principal's care or sharing decisions.

9.3 No inducement. Any participation consideration, incentive, grant, scholarship, card benefit, or other value must be documented separately and reviewed for compliance with applicable law, institutional policy, and research requirements.

ARTICLE 10. TERM AND TERMINATION

10.1 Term. This Agreement begins on the Effective Date and continues until completion of the chosen demo, pilot, validation, or Services workflow unless terminated earlier.

10.2 Termination. Either Party may terminate this Agreement at any time by written notice. The Principal may revoke applicable Authorizations at any time.

10.3 Survival. Articles concerning confidentiality, privacy, validation use, disclaimers, limitations, governing law, and any provisions that by their nature should survive will survive termination.

ARTICLE 11. DISCLAIMERS AND LIMITATION OF LIABILITY

11.1 No medical advice. The Services, Health Passport, Healthograph, SAiRA responses, and related outputs are informational, organizational, educational, and care-preparation tools only. They are not medical advice.

11.2 As-is demo status. Demo and validation services are provided "as is" and "as available" to the maximum extent permitted by law.

11.3 Limitation of liability. To the maximum extent permitted by law, AiTHOS will not be liable for indirect, incidental, special, consequential, exemplary, or punitive damages. Any aggregate liability cap, exclusions, and carve-outs must be set by counsel before execution.

11.4 Non-waivable duties. Nothing in this Agreement limits liability for obligations that cannot legally be limited, including obligations counsel identifies as non-waivable fiduciary, confidentiality, willful misconduct, data-breach, or statutory duties.

ARTICLE 12. CONFLICTS AND DISCLOSURES

12.1 Material conflicts. AiTHOS will disclose known material conflicts that bear on the Services, including relationships with providers, sponsors, product manufacturers, institutions, or programs relevant to the Principal.

12.2 Founder and affiliated roles. The Principal acknowledges that AiTHOS's founder and personnel may hold other professional, commercial, clinical-trial, advisory, or institutional roles. Where such roles are material to the Principal's use of the Services, AiTHOS will disclose them.

12.3 Personal relationships. Where the Principal has a personal or family relationship with AiTHOS personnel, AiTHOS may require an additional acknowledgment or conflict disclosure before enrollment.

ARTICLE 13. GENERAL PROVISIONS

13.1 Governing law. This Agreement is governed by the laws of the State of _____, without regard to conflict-of-law principles.

13.2 Entire agreement. This Agreement and its exhibits constitute the entire agreement between the Parties regarding its subject matter.

13.3 Amendments. This Agreement may be amended only in a written instrument signed or electronically accepted by both Parties.

13.4 Electronic signatures. The Parties may execute this Agreement electronically, subject to counsel-approved electronic signature and consent procedures.

13.5 Severability. If any provision is held unenforceable, the remaining provisions will remain in effect to the maximum extent permitted by law.

13.6 Assignment. The Principal's rights are personal and may not be assigned. AiTHOS may not assign this Agreement without the Principal's consent, except as counsel may approve in connection with corporate reorganization or successor entities.

13.7 Notices. Notices must be sent to the addresses or electronic notice channels designated by the Parties in the signature page or product workflow.

PLAIN-LANGUAGE ACKNOWLEDGMENT

The Principal should review and initial the following acknowledgments before execution or electronic acceptance:

INITIALS	ACKNOWLEDGMENT
_____	AiTHOS helps organize information; it does not provide medical advice.
_____	I remain responsible for consulting licensed clinicians for medical decisions.
_____	I control what sources are requested and what information is shared.
_____	A Health Passport or Healthograph may be incomplete or wrong until reviewed and corrected.
_____	I can revoke permissions and sharing grants as described in the Authorization and product workflow.
_____	If I am a minor, a parent or legal guardian may need to approve or

	complete parts of the workflow.
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SIGNATURES

The Parties execute or electronically accept this Agreement as of the Effective Date. By signing or accepting, the Principal acknowledges having read and understood this Agreement, having had the opportunity to ask questions, and entering into it voluntarily.

AiTHOS — Cadence Cove LLC	Principal
Signature: _____	S ignature: _____
Name: _____	Printed name: _____
Title: _____	Date: _____
Date: _____	Parent/Guardian, if applicable: _____
Notice address/email: _____	Notice address/email: _____